Bow Valley College

Course Outline

LEGL2104

Wills & Estates
Winter 2023 - Fall 2025

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Bow Valley College is situated in Treaty 7 territory. We honour the territories and Peoples of: the Blackfoot Confederacy, which includes the Siksika, Kainai, Piikani, and Amskapi Piikani (Blackfeet) First Nations; the Tsuut'ina First Nation; and the Îyâxe Nakoda, which includes the Goodstoney, Chiniki, and Bearspaw First Nations. We also acknowledge the historical Northwest Métis homeland and the Otipemisiwak Métis Government of Alberta, districts 4, 5, and 6 in Battle River territory.

LEGL2104 Wills & Estates

COURSE DESCRIPTION

This course examines estate planning and estate administration in Alberta. Learners prepare Wills, Personal Directives, Enduring Powers of Attorney, Applications for a Grant of Administration and Grant of Probate in accordance with Alberta legislation and common legal practice and procedure.

REQUISITES	Complete the following courses: • LEGL1402 - Legal Document Processing II (3) • LEGL1501 - Litigation I (3)
EQUIVALENTS	None
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	Yes
ZERO TEXTBOOK COST	Yes

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong students. In addition to the discipline-specific skills that students acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Examine the role of a legal assistant in a wills and estates practice.	2, 4
2	Prepare will and estate documentation in compliance with Alberta legislation.	1, 2, 4, 5
3	Describe the different court applications that may be made under the Adult Guardianship and Trusteeship Act.	1, 2
4	Prepare documentation for a Grant of Administration and Grant of Probate in compliance with Alberta's Surrogate Rules.	1, 2, 4, 5
5	Describe the estate administration process from the time of death to final distribution of estate.	2
6	Explain the consequences of dying without a valid will.	1, 2, 3

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Introduction to wills and estates
Week 2	Preparing a will
Week 3	Amending a will
Week 4	Dying without a will
Week 5	Personal Directive and Enduring Power of Attorney
Week 6	Adult guardianship and trusteeship
Week 7	Overview of estate administration
Week 8	Grant of Administration
Week 9	Reading Week
Week 10	Grant of Administration
Week 11	Grant of Probate
Week 12	Grant of Probate
Week 13	Transmission and transfer of estate assets to beneficiaries
Week 14	Reporting to the client and estate tax
Week 15	Final exam

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
1, 2, 3, 4, 5, 6	Activities	10%
2, 4	Assignments (Minimum of 4)	30%
1, 2, 3	Midterm exam	25%
1, 2, 3, 4, 5, 6	Final exam	35%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Students with documented disabilities (e.g., mental health diagnosis, learning disability, physical disability, etc.) may qualify for classroom and/or exam accommodations. The College can also assist students who may be experiencing difficulties with learning but do not have a formal diagnosis. Students who need academic and exam accommodations based on other protected grounds may also make those requests.
It is the student's responsibility to request academic accommodations. Students are encouraged to contact Accessibility Services as early as possible.

Visit: Learner Success Services- 1st floor south campus
Contact: accessibility@bowvalleycollege.ca or 403-410-1440
BVC Central: Accessibility Services

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Students are urged to become familiar with and uphold the following policies: Academic Integrity (500-1-7), Student Code of Conduct (500-1-1), Student Appeals (500-1-12), Attendance (500-1- 10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13).
Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by students is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior written consent from the instructor.

Academic Integrity:

At Bow Valley College, we value academic integrity. This means everyone at the college, including students, faculty, and staff, follow principles that foster ethical and truthful ways of being in their work and studies. The college is committed to integrity being infused in all aspects of work and studies. It is important to act with integrity in everything you do at the college. The values you practice at the college are the same values that will inform and guide your career. If someone breaks from the principles that are in agreement with academic integrity policy, the college is committed to carefully investigating and fairly handling any issues related to academic integrity and academic misconduct.

Academic misconduct is acting in such a way as to give yourself or others an unfair academic advantage or disadvantage. Examples of this can include:

- Plagiarism
- Cheating on tests or exams
- Tampering with or falsifying any grades or documents
- Sharing assignments or exam information with others
- Aiding others in dishonest acts
- Using artificial intelligence in graded work without the explicit consent of the instructor
- Recording anything in the classroom or other instructional area without permission

Breaking from the principles that guide academic integrity can lead to educative interventions and/or punitive measures. It is the student's responsibility to review the Academic Integrity Policy. Please review the following resources:

- Academic Integrity Policy Summary
- Academic Integrity Policy
- Academic Integrity Procedure

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student work. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where either the course instructor, a representative of Bow Valley College, or a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, https://www.bowvalleycollege.ca/academic-calendar.
Students are encouraged to keep a copy of this course outline for future reference.

Collection of Personal Information:

This course, including your image and voice, may be recorded and made available to you and other students taking the course. By attending the class(es) online or in person, you consent to the collection of your personal information. If you do not wish to be recorded, please contact your instructor before starting the course/class to discuss alternative arrangements. You may use the recordings only for

educational purposes. You must not copy, share, or use the recordings for any other purpose without the instructor's express permission. Your personal information is collected in accordance with section 4 (c) of the Protection of Privacy Act, Alberta (POPA) to deliver academic programming, support student flexibility, promote universal design for learning principles, and for purposes consistent with the course activities and outcomes. Bow Valley College uses automated systems to generate content and make decisions, recommendations and predictions, and your personal information may be included in these automated systems.

Your personal information will be used and disclosed in accordance with sections 12 and 13 of POPA and protected in accordance with section 10 of POPA. If you have any questions about the collection, use, disclosure or protection of personal information, please contact the Access and Privacy Officer at privacy@bowvalleycollege.ca.